

(Name of Court)

**Form 17D: Settlement
Conference Brief for**

- ☐ **Protection Application**
☐ **Status Review**

at _____
Court office address

Name of Party Filing this Brief

Date of settlement conference

Applicant(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Children's Lawyer

Name & address of Children's Lawyer's agent (street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any)) and name of person represented.

PART 1: BASIC INFORMATION ABOUT THE CHILD(REN)

1. The basic information about the child(ren) is as follows:

Child's full legal name	Age	Birthdate (d, m, y)	Full legal name of every parent of child and relationship to child (See subsection 74(1) of the Child, Youth and Family Services Act, 2017.)	Date child was brought to a place of safety

2. Where is the child living at the time of this conference?
3. What is the total length of time that any child less than six years old has been in care? *(Attach more detail if necessary).*
Name of child _____ Total length of time _____
4. What is the total length of time any child six years old or more has been in care? *(Attach more details if necessary.)*
Name of child _____ Total length of time _____
5. Is any child a First Nations, Inuk or Métis person?
☐ No. ☐ Yes.
- 5.a If the answer to question 5 is "Yes" and the child is a First Nations, Inuk or Métis person, give the name, address, and telephone number of the representative chosen by each of the child's bands and First Nations, Inuit or Métis communities to which the child is a member or identifies with.
6. If the child was brought to a place of safety before the hearing, name the person from whose care and the place from which the child was removed.
7. Has everyone who is entitled to notice in this case been served?
☐ Yes. ☐ No. *(Do you want an order for substituted service on any person or an order that service is not required? Give details.)*

PART 2: OUTSTANDING ISSUES

NOTE: If you want to refer to a report or document that has already been filed in the continuing record, just give the page number(s) or tab number of that document in the continuing record. If you are updating a document that is already in the continuing record, you must file the updated document in the continuing record and then refer to it by the page number(s) or tab numbers of that update in the continuing record. If you want to refer to anything else that is not in the continuing record and that does not need to be in the continuing record, you must attach it to this brief.

(Complete only Part 2A – Protection Application or Part 2B – Status Review, not both)

Part 2A – Protection Application

8. The parties have reached an agreement or the court has made an order on the following issues:

- | | |
|---|---|
| ☐ findings of fact set out in Part 1 above | ☐ payment order |
| ☐ temporary care and custody | ☐ access |
| ☐ finding that child is in need of protection | |
| ☐ placing the child(ren) with (name of person) _____ | |
| for _____ months under supervision. | |
| ☐ Interim society care for _____ months. | ☐ extended society care with access |
| ☐ (Other. Specify.) | ☐ extended society care without access |

The details of this agreement or order are:

9. What are the issues in this case that have NOT yet been resolved and what needs to happen to resolve them?

10. Are any of the issues in this case urgent?

- ☐ No. ☐ Yes. (Identify the issues and give details of why the issues are urgent.)

Part 2B – Status Review

11. The parties have reached an agreement or the court has made an order on the following issues:

- | | |
|---|---|
| ☐ temporary care and custody | ☐ payment order |
| ☐ placing the child(ren) with (name of person) _____ | |
| for _____ months under supervision. | |
| ☐ interim society care for _____ months. | ☐ access |
| ☐ (Other. Specify.) | ☐ extended society care with access |
| | ☐ extended society care without access |

The details of this agreement or order are:

12. What are the issues in this case that have NOT yet been resolved and what needs to happen to resolve them?

13. Are any of the issues in this case urgent?

- ☐ No. ☐ Yes. (Identify the issues and give details of why the issues are urgent.)

PART 3: PROCEDURAL ISSUES

14. If there is an assessment in this case, is it finished?
☐ Yes. (If it is not already filed in the continuing record, file it now. Give the tab/page number(s) of the assessment: _____)
☐ No. (Explain why the assessment is not ready.)
15. Are there any other assessments necessary or not yet completed?
☐ No. ☐ Yes. (Give details of the type of assessment, who will be assessed and any issues relating to the timing or completion of the assessment.)
16. If the Children's Lawyer is involved in this case, has the Children's Lawyer told the parties what its position is on the issues involving the child(ren)?
☐ Yes. (What is the Children's Lawyer's position? Explain below.) ☐ No. (Explain below.)
17. Have you served and filed a plan of care?
☐ No. ☐ Yes. (A copy of the plan of care must be filed in the continuing record.) The plan can be found at tab/page _____ of the continuing record.
18. Have the parties finished the disclosing of documents and the questioning of witnesses?
☐ Yes. ☐ No. (State what has not been done.)
19. Are there issues that require expert evidence or a report?
☐ No. ☐ Yes. (If yes, provide details such as: the type of expert evidence; whether the parties retained a joint expert; who the expert is; who is paying the expert; etc.)
20. Have all of the reports you intend to rely on been provided to all of the parties and the Children's Lawyer (if involved)?
☐ No. ☐ Yes.
If no, when will they be provided?
21. Are there any further procedural orders needed in this case?
☐ No. ☐ Yes. (Explain.)
22. Has an order been made for affidavit evidence at trial? (Give details.)

PART 4: OFFER TO SETTLE

23. The following is my offer to settle the outstanding issues in this case:

If you have already made an offer and it is still open for acceptance, attach a copy of this brief. The other side can accept your offer. And if the other side does accept it, the accepted offer becomes a binding contract and can be turned into a court order that can be enforced against you. The other side can make a counter-offer.

Put a line through any space left on this page. If additional space is needed, extra pages may be attached.

Date of party's signature

Signature of party

Date of lawyer's signature

Signature of party's lawyer